Brazoria County District Court

Cause No. 2024-CV-0036

Sandra Dawson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	May 31, 2024
Plaintiff's counsel:	Deanna Cox, Sullivan & Palmer LLP

PARTIES

Plaintiff Sandra Dawson is an individual residing in Texas who was the driver and sole occupant of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance comapny authorized to transact business in the State of Texas, which issued the policy of automobile liability and uninsured/underinsured motorist coverage under which Plaintiff seeks recovery. Defendant may be served through its registered agent for service of process.

FACTS

On December 26, 2023, Plaintiff was lawfully operating his vehicle on a public roadway in Pasadena, Texas, traveling in the lane to the left of the other vehicle. The driver of the insured vehicle, operating under Defendant's policy, attempted to change lanes into the space Plaintiff occupied. The insured driver did not check his mirrors or blind spot, did not signal, and did not yield the right of way before moving over. The insured vehicle struck the driver side of Plaintiff's vehicle, forcing it toward the shoulder and causing both vehicles to sustain damage. Plaintiff reported the collision to Defendant promptly and submitted all information requested.

NEGLIGENCE

The insured driver owed Plaintiff a duty to exercise ordinary care in operating a motor vehicle, including the duty under Texas Transportation Code Section 545.060 to drive in a single lane and to move from that lane only when it can be done safely. The insured driver breached that duty by changing lanes without ensuring the movement was safe, and that breach was the direct and proximate cause of the collision and of Plaintiff's injuries. Defendant, as the liability insurer of the insured driver, is responsible for the insured's negligence to the extent of its policy limits and unedr the terms of its coverage.

DAMAGES

As a direct result of the collision, Plaintiff suffered a serious inujry to his right shoulder, requiring medical examination, imaging, physical therapy, and ongoing treatment. Plaintiff has incurred past medical expenses, lost wages from time missed at work, and will likely incur future medical care and reduced earning capacity. Plaintiff also suffers physical pain, mental anguish, and loss of enjoyment of life. Plaintiff seeks damages in an amount within the jurisdictional limits of this Court, presently demanded in the sum of $191,000.00, together with pre-judgment and post-judgment interest, costs of court, and all other relief to which Plaintiff may be justly entitled.